

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000009

Am.Gonzalez

Recorded On: 6/23/2026 10:25:06 AM

Number of Pages: 1

NF Pages: 1

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000009
Receipt Number	2000506
Fees	\$12.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

NOTICE OF TRUSTEE'S SALE

STATE OF TEXAS }
 }
COUNTY OF EL PASO } KNOW ALL MEN BY THESE PRESENTS

Whereas, by **DEED OF TRUST** (herein "Deed of Trust") which Deed of Trust is recorded under Clerk's File No. **20230035331**, of the Real Property Records of El Paso County, Texas, dated **May 12, 2023**, **JAVIER ORTIZ**, conveyed to Steven E. Anderson, Trustee, At 1533 N. Lee Trevino, Ste. 205, El Paso, Texas 79936, for the benefit of **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA or Holder of the Note**, certain real property situated in El Paso County, Texas, to wit:

Lot 8, Block 5, ESTANCIAS DEL PARRAL SUBDIVISION, an addition to the County of El Paso, according to the plat thereof on file under Clerk's File No. 20220033680, Real Property Records, El Paso County, Texas, municipally known as 365 Mercy Tellez Court, Socorro, Texas 79927 (**herein the "Property"**).

to secure payment of one certain **REAL ESTATE LIEN NOTE** therein described in the original principal amount of **\$191,500.00**, executed by **JAVIER ORTIZ**, and made payable to **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA** (herein the "Note").

Whereas, default has occurred under the terms of the Note secured by the Deed of Trust, and the indebtedness evidenced herein is now wholly due, **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**, the owner and holder of said indebtedness, and he has requested the undersigned to sell the Property to satisfy same.

NOW THEREFORE, NOTICE IS HEREBY GIVEN that on **TUESDAY, AUGUST 4, 2026**, between the hours of 1:00 o'clock p.m. and 4:00 o'clock p.m., I will sell, for cash, the Property in El Paso County in the area designated by the Commissioners Court at the El Paso County Coliseum, 4100 E Paisano Dr, El Paso, TX 79905, pursuant to Section 51.002 of the Texas Property Code, as the place where foreclosure sales are to take place. If no place is designated by the Commissioners' Court, sale will be conducted at the place where the Notice of Trustee's Sale was posted to the highest bidder or bidders for cash or cash equivalent. The earliest time the sale will begin is 1:00 o'clock p.m., or within three hours after that time.

Therefore, notice is given that on and at the date, time, and place for the foreclosure sale described above, Trustee will sell the Property in accordance with the terms of sale described above, the Deed of Trust, and applicable Texas law.

If **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**, passes the foreclosure sale, notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

The foreclosure sale will be expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the foreclosure sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the foreclosure sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS" without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

NOTICE REQUIRED BY SECTION 51.002(i) OF THE PROPERTY CODE

"ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY."

SENDER'S NAME AND ADDRESS:

ANDERSON, BRIGHT & ASSOCIATES, P.C.
ATTORNEY'S AT LAW
ATTN: STEVEN E. ANDERSON
1533 N. LEE TREVINO, SUITE 205
EL PASO, TX 79936

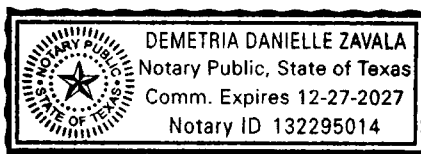
WITNESS MY HAND this 22nd day of JUNE, 2026.

By: _____

STEVEN E. ANDERSON, TRUSTEE

STATE OF TEXAS }
 }
COUNTY OF EL PASO }

This instrument was acknowledged before me on this 22nd day of JUNE, 2026, by STEVEN E. ANDERSON, TRUSTEE under the above-mentioned Deed of Trust.



NOTARY PUBLIC, STATE OF TEXAS